

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 13, 2026
8:30 AM/1:30 PM

7. JESSALYN MANZER V. KEVIN MANZER

24FL1282

On May 27, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders. All required documents were served by mail and electronically on May 27th, however this is a post-judgment request and therefore service was to comply with Family Code § 215.

Respondent filed a declaration on July 1, 2026. It was served on July 30th.

Despite the defect in service, the parties attended Child Custody Recommending Counseling (CCRC) on July 2, 2026 and were able to reach agreements on all issues. A report codifying their agreements was prepared the same day. It was mailed to the parties on July 6, 2026.

Respondent filed and served a reply declaration on July 27th.

Petitioner has not filed a Responsive Declaration to Request for Order. Nevertheless, she did show up at, and participate in, the CCRC appointment. Therefore, the court finds that she has actual knowledge of the pending requests and the matter may be reached on the merits.

Respondent is asking the court to order Petitioner to comply with the 2-2-5 visitation schedule which was previously agreed upon by the parties. He also requests sanctions in the amount of \$5,000 pursuant to Family Code § 271.

After reviewing the filings as outlined above, the court does find the agreements contained in the July 2, 2026 CCRC report to be in the best interests of the minors with the following modifications. Paragraph 2 of the Holidays section shall be amended to delete the sentence “Mother shall have Monday at 3:00pm to Wednesday at 3:00pm.” Paragraph 1 of the Terms and Conditions section shall be modified to read – “The terms and conditions of this order may be added to or changed as the needs of the children and parties change. Such changes will be in writing, dated and signed by the parties; each party will retain a copy. If the parties are unable to agree, they will be required to return to mediation for the pending issue. The parties will not unilaterally change the existing agreement, and it will be followed until otherwise resolved in mediation or the courts.” Finally, in keeping with the section wherein the parties agree not to make negative comments about one another or make such comments via social media, Petitioner is ordered to remove from the internet the social media post which is attached as Exhibit F to Respondent’s July 1st declaration.

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Respondent is requesting sanctions pursuant to Family Code section 271 which states, in pertinent part, "...the court may base an award of attorney's fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation of the parties and attorneys. An award of attorney's fees and costs pursuant to this section is in the nature of a sanction." Fam. Code § 271(a). While the purpose of Section 271 is to impose a punitive sanction, the court is not to impose a sanction that would create an "unreasonable financial burden on the party against whom the sanction is imposed." *Id.*

Here, the court is concerned with Petitioner's repeated discussions with the minors regarding custody and her blatant disregard for the terms of the Marital Settlement Agreement which became the judgment of the court; this includes introducing her significant other to the minors without following the agreed upon steps for doing so and her refusal to comply with the visitation schedule. Petitioner's repeated failure to comply with the terms of the judgment directly increased the costs of litigation for Respondent and therefore, the court does find sanctions to be warranted. That said, the court is concerned that the requested amount of \$5,000 would pose an unreasonable financial burden on Petitioner. Furthermore, the court does not find \$5,000 to be a reasonable amount of fees incurred in connection with Petitioner's misfeasance. As such, Petitioner is sanctioned \$1,000 pursuant to Family Code § 271. This amount is to be paid directly to Respondent's attorney. Payment may be paid in one lump sum or in monthly increments of \$100 commencing on September 1, 2026 and continuing until paid in full (approximately 10 months). If any payment is missed or late the entire amount shall become immediately due and payable.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #7: THE COURT FINDS THE AGREEMENTS CONTAINED IN THE JULY 2, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS WITH THE FOLLOWING MODIFICATIONS. PARAGRAPH 2 OF THE HOLIDAYS SECTION SHALL BE AMENDED TO DELETE THE SENTENCE "MOTHER SHALL HAVE MONDAY AT 3:00PM TO WEDNESDAY AT 3:00PM." PARAGRAPH 1 OF THE TERMS AND CONDITIONS SECTION SHALL BE MODIFIED TO READ – "THE TERMS AND CONDITIONS OF THIS ORDER MAY BE ADDED TO OR CHANGED AS THE NEEDS OF THE CHILDREN AND PARTIES CHANGE.

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SUCH CHANGES WILL BE IN WRITING, DATED AND SIGNED BY THE PARTIES; EACH PARTY WILL RETAIN A COPY. IF THE PARTIES ARE UNABLE TO AGREE, THEY WILL BE REQUIRED TO RETURN TO MEDIATION FOR THE PENDING ISSUE. THE PARTIES WILL NOT UNILATERALLY CHANGE THE EXISTING AGREEMENT, AND IT WILL BE FOLLOWED UNTIL OTHERWISE RESOLVED IN MEDIATION OR THE COURTS.” FINALLY, IN KEEPING WITH THE SECTION WHEREIN THE PARTIES AGREE NOT TO MAKE NEGATIVE COMMENTS ABOUT ONE ANOTHER OR MAKE SUCH COMMENTS VIA SOCIAL MEDIA, PETITIONER IS ORDERED TO REMOVE FROM THE INTERNET THE SOCIAL MEDIA POST WHICH IS ATTACHED AS EXHIBIT F TO RESPONDENT’S JULY 1ST DECLARATION.

PETITIONER IS SANCTIONED \$1,000 PURSUANT TO FAMILY CODE § 271. THIS AMOUNT IS TO BE PAID DIRECTLY TO RESPONDENT’S ATTORNEY. PAYMENT MAY BE PAID IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$100 COMMENCING ON SEPTEMBER 1, 2026 AND CONTINUING UNTIL PAID IN FULL (APPROXIMATELY 10 MONTHS). IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT’S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.